

25NNCV06707 25NNCV06707

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-17

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Case Number: 25NNCV06707 Hearing Date: July 17, 2026 Dept: B

Hon.

Victor Avila, Dept B

Plaintiff

Tracy Thai's Motion to Compel Defendant City of Temple City's Further Responses
to Plaintiff's Special Interrogatories, Set One

Plaintiff

Tracy Thai's Motion to Compel Defendant City of Temple City's Further Responses
to Plaintiff's Requests for Admission, Set One

Hearing Date: 07/17/26

CASE

NO./NAME: 25NNCV06707/Tracy Thai, et. al. v. City of Temple, et. al.

Moving Party: Plaintiff

Tracy Thai

Responding Party:

Defendants City of Temple City

Notice: Sufficient

Rulings: DENY AS MOOT

NOTICE

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a wrongful death case. On February 13, 2025, Decedent Hung Chanh Thai was allegedly traveling westbound on Lower Azusa Road in dark and rainy weather when the roadway was suddenly narrowed by a bulb. (Compl., ¶ 26.) When Decedent struck the bulb, Decedent's vehicle was immobilized on train tracks and hit by a train. (Id. at ¶ 28.) Consequently, Decedent died. (Ibid.) Plaintiff Cindy Thai, Decedent's daughter and successor-in-interest to the Estate of Decedent, brings this action on behalf of Plaintiff Tracy Thai ("Thai"), Decedent's wife, and Michael Thai, Decedent's son (collectively, "Plaintiffs"). (Id. at ¶ 1.) Defendants City of Temple ("City"), City of Rosemead, County of Los Angeles, California Department of Transportation, and Does 1 through 50 (collectively, "Defendants") are alleged to have designed, constructed, built, maintained, and controlled the roadway located at Lower Azusa Road. (Id. at ¶ 20.)

On January 23, 2026, Plaintiffs filed a Complaint alleging (1) dangerous condition of public property and (2) negligence.

On April 14, 2026, Plaintiff Thai filed a Motion to Compel Defendant City's Further Responses to Plaintiff's Special Interrogatories, Set One and a Motion to Compel Defendant City's Further Responses to Plaintiff's Request for Admission, Set One.

On July 6, 2026, City filed an opposition to both motions.

On July 8, 2026, City filed an amended opposition to both motions.

On July 10, 2026, Thai filed replies to both oppositions.

LEGAL

STANDARD

Motions to compel further responses

must always be accompanied by a meet-and confer-declaration (per Code Civ. Proc., § 2016.040) demonstrating a “reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Id. at §§ 2030.300, subd. (b), 2031.310, subd. (b)(2), 2033.290, subd. (b).) They must also be accompanied by a separate statement containing the requests and the responses, verbatim, as well as reasons why a further response is warranted. (Cal. Rules of Court, rule 3.1345, subd. (a).) The separate statement must also be complete in itself; no extrinsic materials may be incorporated by reference. (Id. at rule 3.1345, subd. (c).)

Special

Interrogatories

Pursuant to Code Civ.

Proc. § 2030.030(a)(1), a party may propound to another party “[t]hirty-five specially prepared interrogatories that are relevant to the subject matter of the action.” Further special interrogatories, beyond the thirty-five allowed by right, may be propounded if the party “attaches a supporting declaration” describing why further special interrogatories are warranted based on “[¶] [t]he complexity or the quantity of the existing and potential issues in the particular case.” (Code Civ. Proc., § 2030.040, subd. (a)(1).)

The propounding party may move for an order compelling

further responses to the special interrogatories if the propounding party deems that (1) an answer to a particular interrogatory is evasive or incomplete, (2) an exercise of the option to produce documents in lieu of a response is unwarranted, or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a)(1)-(3).) Such a motion compelling further responses must be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040 and a separate statement document providing a concise explanation of all information necessary to understand each discovery request and all the responses to it that are at issue. (Code Civ. Proc., § 2030.300, subd. (b)(1); Cal. Rules of Court, rule 3.1345.)

Requests for Admission

California law requires a responding party to respond to each propounded request for admission with either a substantive answer or an objection to the particular request. (Code Civ. Proc., § 2033.210, subd. (b).) Each substantive answer must: “(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party; (2) Deny so much of the matter involved in the request as is untrue; (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (Code Civ. Proc., § 2033.220, subd. (b).) “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).)

A propounding party may move for an order compelling further responses to requests for admission if any of the following apply: “(1) An answer to a particular request is evasive or incomplete; or (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

DISCUSSION

Thai moves to compel further response from City to Thai's Requests for Admission, Set One, requests 1, 4-28 (“RFAs”) and Thai's Special Interrogatories, Set One, interrogatory numbers 1-27 and 29-35 (“Special Interrogatories”) within 10 days of the hearing. Thai also seeks sanctions.

After the filing of this motion on April 14, 2026, City served supplemental responses to Thai's Special Interrogatories and RFAs on June 26, 2026. (Campion Decl., ¶ 21, Ex. K.)

The motions to compel are denied as moot because City served supplemental responses to the Special Interrogatories and the RFAs. No

sanctions are to be awarded.

CONCLUSION

AND ORDER

Plaintiff Tracy Thai's Motion to Compel Defendant City of Temple's Further Responses to Plaintiff's Special Interrogatories, Set One, and Motion to Compel Defendant City of Temple's Further Responses to Plaintiff's Request for Admission, Set One, are denied as moot.

Plaintiff Tracy Thai's requests for sanctions are denied.

MOVING PARTY shall provide notice of this order.